

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Monday, March 7, 2022 at 6:00 p.m. in the commissioners' conference room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those commissioners present were as follows: Chairman Leo Kelly, Jr., Commissioners R. Dan Brummitt, Carolyn Faines, Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder.

Absent: Vice-Chair Yolanda J. Feimster.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Rev. Joseph Ratliff, Shiloh Baptist Church, gave the invocation.

Public comments were heard first. Mr. Sterlin Walker, Jr. stated that he is a retired Sergeant of the Vance County Sheriff's Office and requested his badge and ID several months ago. He stated that he has not received a response from the Sheriff on this matter and asked the board to look into this for him. The board referred this matter to the county manager.

Mr. Frankie Nobles, Vance County Employee Engagement Team Chair, appeared before the board to recognize the new employee of the month. He noted that employees are nominated by their peers, and this month's recognition goes to Captain Stephen Michael Smith with the Vance County Fire Department. His peers noted that he shows initiative, is extremely motivated, and does not hesitate to work additional hours when needed. Mr. Smith will receive a \$100 gift card and a designated parking space for the month. Mr. Smith was presented with a certificate of appreciation and the board congratulated him on receiving this recognition.

Fire Chief Chris Wright was next on the agenda and recognized Captain John O'Neal who received the Optimist Club Service of the Year Award for his distinguished and dedicated service through public safety. The board congratulated Captain O'Neal on receiving this award.

Ms. Patti McAnally, Director of Perry Memorial Library, appeared before the board and provided an update on activities at the library. Her report included information on curbside delivery, grants received over the last year, and community assessment and strategic planning. The board thanked Ms. McAnally for her report and for all she does to make the library a focal point of the community.

Water District Board

Chairman Leo Kelly, Jr. called the Water District Board to order and the January 2022 monthly operations report was presented to the board for information. Chairman Leo Kelly, Jr. adjourned the Water District Board.

Committee Reports and Recommendations

Technology Committee – Cybersecurity. County Manager Jordan McMillen reported that the committee (Brummitt, Feimster [absent] & Taylor) met Wednesday, February 23 and received an update from the County IT Director on the county's cybersecurity measures. By definition, cybersecurity is the practice of protecting systems, networks, and programs from digital attacks. The committee reviewed data indicating the source, type, and location of various attacks the county intercepts every day. The committee was informed the county receives 1,800 to 2,000 emails a day and due to security threats the system blocks 20 – 30% of incoming emails. Staff discussed a future priority for moving from an on-premise email server to Microsoft 365 which would provide an offsite option for increasing the county's level of protection. The committee discussed email phishing campaigns and recommended staff to proceed with a test campaign in the next six months. Additionally the committee supported the concept of future partnerships with other counties that would allow for hosting or collaborating for backup data storage offsite.

Technology Committee – Broadband NC GREAT Grant Partnership. Mr. McMillen stated that the committee reviewed a map indicating areas in the county that are in need of broadband and was informed that \$1 billion in state American Rescue Plan Act (ARPA) funds and \$30 million in state funds have been budgeted to expand broadband across the state. The committee was made aware that \$380 million is available for the next round of NC GREAT grant funding which recently opened their grant window running through April 4, 2022. Local governments are not eligible to apply for GREAT grant funds, but can partner with internet service providers who have interest in expanding coverage. The maximum grant amount per applicant is \$4 million and the max amount per county is \$8 million. Staff also discussed recent conversations with existing internet service providers and informed the committee that Charter/Spectrum recently received federal Rural Digital Opportunity Fund (RDOF) funding that will allow them to make broadband improvements in parts of Vance County over the next few years. The committee was made aware that CenturyLink intends to submit a GREAT grant application for Vance County in the next month and discussed a proposal and Memorandum of Understanding with CenturyLink that would create

a partnership if they are successful in receiving the grant funding. The committee recommended proceeding with a scenario whereas CenturyLink would apply for \$4 million in GREAT grant funding, and if awarded, would commit the county to provide 10% of the overall project cost (maximum of \$750,000) in ARPA funding to allow for the addition of approximately 110 miles of fiber available to approximately 2,261 eligible premises across the county. Recommendation: Approve the memorandum of understanding with CenturyLink related to the North Carolina Growing Rural Economies with Access to Technology (GREAT) grant program which commits the county to provide an amount not to exceed \$750,000 in County American Recovery Plan Act funds if CenturyLink is awarded the grant, subject to final attorney review.

Motion was made by Commissioner Dan Brummitt to approve the memorandum of understanding with CenturyLink related to the NC Growing Rural Economies with Access to Technology (GREAT) grant program which commits the county to provide an amount not to exceed \$750,000 in County American Recovery Plan Act funds if CenturyLink is awarded the grant, subject to final attorney review. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Properties Committee – 2434 Old Norlina Road. Mr. McMillen noted that the committee (Brummitt, Kelly & Taylor) met Wednesday, February 23 and discussed a proposal from the City of Henderson to lease a vacant, jointly owned property located at 2434 Old Norlina Road to the adjoining property owner. The committee discussed their concern with the property currently being untaxable (publically owned), but felt comfortable conveying the property to the city with the understanding the county would receive its share of lease and/or future sales revenue based on the current property ownership percentages. Recommendation: Approve the transfer of 2434 Old Norlina Road to the City of Henderson subject to the county receiving its portion of any future lease and/or sales revenue based on current ownership percentages.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the transfer of 2434 Old Norlina Road to the City of Henderson subject to the county receiving its portion of any future lease and/or sales revenue based on current ownership percentages.

Properties Committee – Conveyance of Joint REO Properties to City of Henderson. Mr. McMillen reported that the committee reviewed the listing of jointly owned REO properties which indicates that a total of 116 properties are jointly owned with the City of Henderson with only 10

being available for public sale. The committee discussed the city's efforts to retain properties for future development as a part of their ongoing urban redevelopment plan and discussed the county's upset bid process which has allowed the market to drive the process of disposing properties. The committee was informed that an additional 116 properties (county owned and jointly owned) have been returned to the tax rolls over the past five years which has brought in over \$300,000 in revenue and has added \$830,000 in value back to the tax rolls. The committee recommended a future intergovernmental committee meeting with the city to discuss further disposition of jointly owned properties and were open to blocks of properties coming back for consideration in the future.

Properties Committee – Shell Building for Economic Development. Mr. McMillen stated that the committee discussed a proposal from the Henderson-Vance Industrial Park Board (HVIP) that would involve the HVIP being the entity to design, construct and market shell buildings on the recently acquired industrial park property with funding from the county and possibly the city. The conveyance of land/lots as well as any funds loaned to HVIP would be secured by a note and deed of trust due and payable back to the county when the project is complete and either sold or leased. The initial project would entail the county conveying approximately seven acres of land to HVIP to allow them to design and develop a 50,000 sq. ft. shell building expandable to approximately 100,000 sq. ft. A price per acre can be established at a later time. The land would be located at the corner of Bearpond Road and Commerce Drive. The committee discussed and was open to the possibility that negotiating and/or forgiving a portion or all of the note later, depending upon the type of economic development incentives required, is expected or understood depending on the prospective company. The committee was informed the HVIP is ready to proceed with design with an anticipated design cost of \$49,950 (including design, bidding, construction oversight, and contract administration). The committee was aware that any funds provided by the county for design or construction in the future would be subject to required public hearing(s) for economic development purposes. The committee was supportive of the concept and is seeking a consensus from the board to proceed forward with this arrangement. Recommended Consensus: Support the idea to allow HVIP to be the organization to design and build shell buildings in the industrial park, with the first shell building in the approximate size of 50,000 sq. ft., expandable to 100,000 sq. ft., on approximately 7 acres located on the corner of Bearpond Road and Commerce Drive. Vance County will be willing to transfer land (a lot to be subdivided from

the whole tract) to the HVIP with a note and deed of trust securing the value of the land transferred. A price per acre can be established at a later time. It is further anticipated that HVIP will be provided financing for a significant portion if not all of the costs by Vance County, which will also be secured by the real estate as well. It is understood that HVIP will be primarily responsible for the design, development construction and then marketing and the ultimate sale of the shell building.

The board's consensus was unanimous to support this idea.

Properties Committee – Former DSS Building. Mr. McMillen reported that the committee briefly discussed recent interest in the former DSS building on Ruin Creek Road. The committee intends to discuss disposition of the property at a future meeting. The committee recommended staff to secure the property and reduce liability by installing no trespassing signs and blocking driveway access.

Commissioner Thomas S. Hester, Jr. recommended that no parking signs be installed first without blocking the driveway. If in the future, we are still having issues, we can install no trespassing signs and/or block driveway access.

After discussion of this matter, it was referred back to the properties committee for further review.

County Manager's Report

Extension of Agricultural Land Lease – Henderson Vance Industrial Park. County Manager Jordan McMillen noted that the county currently has an agricultural land lease with Wayne and Matthew Grissom allowing them to farm portions of the 83 acres owned by the county at the Henderson-Vance Industrial Park. The renewal will extend the lease and ensure the land is maintained while providing the county flexibility to remove sections of land should the need arise.

Recommendation: Approve the resolution renewing the lease of real property identified as tax parcel 0453 05005 pursuant to NCGS 160A-272.

Motion was made by Commissioner Gordon Wilder to approve the following resolution renewing the lease of real property identified as tax parcel 0453 05005 pursuant to NCGS 160A-272. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

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RESOLUTION
by the Vance County Board of Commissioners
Authorizing the Renewal of Lease of Real Property Pursuant to NCGS 160A-272

WHEREAS, pursuant to NCGS § 153A-176 and 160A-272, any property owned by Vance County may be leased or rented for such terms and upon such conditions as the Commissioners may determine, but not for longer than 10 years and only if the Commissioners determine that the property will not be needed by the county for the term of the lease; and

WHEREAS, Vance County owns real estate referred to as the Elmore tract, Vance County tax parcel ID 0453 05005 and more particularly shown on Plat Book “Y”, Page 985, Tract 1, 82.582 acres Vance County Registry for economic development purposes; and

WHEREAS, Vance County desires for the open land to be maintained until such time as the real estate, or portions thereof, are needed by Vance County; and

WHEREAS, T. Wayne Grissom and Matthew Grissom previously leased the open land and currently use the property for growing agricultural crops, and are willing to maintain the property and permit the County to remove any or all of the land at any point in time with 30 days notice to them, regardless of any crops planted, growing or harvested for a term from the date of approval through November 30, 2027; and

WHEREAS, Vance County, pursuant to NCGS §160A-272 (a1) has published a notice describing the property to be leased or rented, stating the annual rental or lease payments, and announcing the Commissioner’s intent to authorize the lease or rental at its next regular meeting at least 30 days prior to said meeting.

NOW, THEREFORE, BE IT RESOLVED by the Board of Commissioners for the County of Vance as follows:

1. The real property known as the Elmore Tract, and more specifically identified as Tax Parcel 0453 05005 and more particularly shown on Plat Book “Y”, Page 985, Tract 1, 82.582 acres and recorded in Deed Book 1349, Page 659 of the Vance County Registry, will be leased to T. Wayne Grissom and Matthew Grissom according to the terms and conditions set forth in the attached Agricultural Lease Agreement.
2. The Chairman of the Vance County Board of Commissioners is hereby authorized to execute any and all documents related to the above authorized lease.

This resolution shall be effective upon its adoption.

ADOPTED this the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr.

Attest:

Kelly H. Grissom (signed)
Kelly H. Grissom

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Capital Fund Transfer. Mr. McMillen stated that the county added \$4.9 million to the general fund balance in fiscal year 2021 as presented in the finalized audit. This positions the county financially to plan for major capital needs over the next few years, many of which have been delayed in the Capital Improvements Plan (CIP). The CIP as reviewed during the retreat includes over \$2,000,000 in capital needs for the coming year. Some of the major projects in the next few years include roof, HVAC and additional pavement replacements at the community college as well as construction of a VIPER tower to improve public safety in-building radio

coverage and VHF paging to the volunteer departments. Additionally, the CIP includes construction of a new emergency services building for our EMS and fire departments that would allow for adequate vehicle and equipment storage as well as appropriate work, training, and sleeping spaces. The county also continues to discuss the potential for contributing financially towards construction of a shell building at the industrial park. To position the county to begin planning for capital needs the next few years, Mr. McMillen recommended transferring \$4.5 million from the general fund to the capital fund. Recommendation: Approve Budget Transfer #3 transferring \$4.5 million from the general fund to the capital improvement fund.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to approve Budget Transfer #3 transferring \$4.5 million from the general fund to the capital improvement fund.

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**Budget Transfer #3
FY 2021-2022
Capital Improvement**

Transfer From:	Account Number	Amount
General Fund	10-000-999000	4,500,000
Total		\$ 4,500,000
Transfer To:	Account Number	Amount
Capital Improvement Fund	61-397-439710	4,500,000
Total		\$ 4,500,000

Purpose: Transfer from General Fund to Capital Improvement Fund to assist with future capital needs.

Authorization: Vance County Board of Commissioners
March 7, 2022

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County Attorney’s Report

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during previous meetings, the board approved the public sale process for real properties located at High Street Lot – Parcel 0008 01026B; 552 Thomas Street – Parcel 0021 01011; Thomas Street Lot – Parcel 0021 01016; 608 E. Rockspring Street – Parcel 0078 06009; 1010 Standish Street – Parcel 0091 07007A; and 200 Mindy Lane – Parcel 0407 01021M. He stated that the

properties have been through the upset bid process and the board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following resolutions accepting the bids for High Street Lot – Parcel 0008 01026B; 552 Thomas Street – Parcel 0021 01011; Thomas Street Lot – Parcel 0021 01016; 608 E. Rockspring Street – Parcel 0078 06009; 1010 Standish Street – Parcel 0091 07007A; and 200 Mindy Lane – Parcel 0407 01021M.

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

High Street Lot, Henderson, NC, Vance County Tax Department Parcel Number 0008 01026B.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 7, 2022, a notice was published in the *Daily Dispatch* on **February 17, 2022**, stating that said offer by **Frederick Taylor** in the amount of **\$1,280.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Frederick Taylor** in the amount of **\$1,280.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

552 Thomas Street, Henderson, NC, Vance County Tax Department Parcel Number 0021 01011.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 7, 2022, a notice was published in the *Daily Dispatch* on **February 17, 2022**, stating that said offer by **Yolanda Garcia Vasquez** in the amount of **\$1,600.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Frederick Taylor**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 19, 2022**, stating that said offer by **Frederick Taylor** in the amount of **\$2,350.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Frederick Taylor** in the amount of **\$2,350.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

Thomas Street Lot, Henderson, NC, Vance County Tax Department Parcel Number 0021 01016.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 7, 2022, a notice was published in the *Daily Dispatch* on **February 17, 2022**, stating that said offer by **Yolanda Garcia Vasquez** in the amount of **\$1,600.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Frederick Taylor**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 19, 2022**, stating that said offer by **Frederick Taylor** in the amount of **\$2,350.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Frederick Taylor** in the amount of **\$2,350.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for

the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

608 E. Rockspring Street, Henderson, NC, Vance County Tax Department Parcel Number 0078 06009.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 7, 2022, a notice was published in the *Daily Dispatch* on **February 17, 2022**, stating that said offer by **Frederick Taylor** in the amount of **\$2,032.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Maria Felix Santos Cruz**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 19, 2022**, stating that said offer by **Maria Felix Santos Cruz** in the amount of **\$2,782.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Maria Felix Santos Cruz** in the amount of **\$2,782.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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RESOLUTION ACCEPTING BID FOR COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

1010 Standish Street, Henderson, NC, Vance County Tax Department Parcel Number 009107007A.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on January 10, 2022, a notice was published in the *Daily Dispatch* on **January 15, 2022**, stating that said offer by **Yolanda Garcia Vasquez** in the amount of **\$865.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by *Frederick Taylor*; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **January 25, 2022**, stating that said offer by **Frederick Taylor** in the amount of **\$1,615.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by *Yolanda Garcia Vasquez*; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 1, 2022**, stating that said offer by **Yolanda Garcia Vasquez** in the amount of **\$2,365.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by *Frederick Taylor*; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 3, 2022**, stating that said offer by **Frederick Taylor** in the amount of **\$3,865.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***Frederick Taylor*** in the amount of ***\$3,865.00*** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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RESOLUTION ACCEPTING BID FOR COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

200 Mindy Lane, Henderson, NC, Vance County Tax Department Parcel Number 0407 01021M.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on November 1, 2021, a notice was published in the *Daily Dispatch* on **November 4, 2021**, stating that said offer by **Grethel Mendoza and Edward Mendoza** in the amount of **\$10,000.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Omar Duque Vazquez**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **November 18, 2021**, stating that said offer by **Omar Duque Vazquez** in the amount of **\$20,000.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Milton J. Fuentes**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **November 23, 2021**, stating that said offer by **Milton J. Fuentes** in the amount of **\$22,000.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Omar Duque Vazquez**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **December 2, 2021**, stating that said offer by **Omar Duque Vazquez** in the amount of **\$26,000.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Milton J. Fuentes**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **December 4, 2021**, stating that said offer by **Milton J. Fuentes** in the amount of **\$34,000.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Danielle Harris**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **December 16, 2021**, stating that said offer by **Danielle Harris** in the amount of **\$35,700.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Angel Bernardino Flores Rios**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **December 21, 2021**, stating that said offer by **Angel Bernardino Flores Rios** in the amount of **\$37,500.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Rosalinda Grady**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **December 23, 2021**, stating that said offer by **Rosalinda Grady** in the amount of **\$38,325.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Milton J. Fuentes**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **January 4, 2022**, stating that said offer by **Milton J. Fuentes** in the amount of **\$40,241.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Danielle Harris**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **January 15, 2022**, stating that said offer by **Danielle Harris** in the amount of **\$42,303.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Rosalinda Grady**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **January 27, 2022**, stating that said offer by **Rosalinda Grady** in the amount of **\$44,500.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Milton J. Fuentes**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 10, 2022**, stating that said offer by **Milton J. Fuentes** in the amount of **\$46,775.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Milton J. Fuentes** in the amount of **\$46,775.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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REO Properties – New Offers. Attorney Care stated that new offers have been received for real properties located at 1129 Booker Street – Parcel 0021 03017 (revised opening bid); 815 Water Street – Parcel 0069 04020; 1323 Lehman Street – Parcel 0100 01005; Warrenton Road – Parcel 0212 02012; and 311 Tungsten Mine Road – Parcel 0325 03039. He stated that the board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolutions to begin the upset bid process for the properties. 1129 Booker Street and 1323 Lehman Street are jointly owned with the City, so any action will need to be contingent upon the City taking similar action. The opening bid for 1129 Booker Street has been increased to \$2,100 since the City did not accept the prior bid of \$1,440.

Motion was made by Commissioner Gordon Wilder to approve the upset bid process for real properties located at 1129 Booker Street – Parcel 0021 03017 (revised opening bid); 815 Water Street – Parcel 0069 04020; 1323 Lehman Street – Parcel 0100 01005; Warrenton Road – Parcel

0212 02012; and 311 Tungsten Mine Road – Parcel 0325 03039. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
1129 Booker Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **1129 Booker Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0021 03017**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$2,100.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Frederick Taylor**; and

WHEREAS, **Frederick Taylor** has paid the required deposit in the amount of **\$750.00** with the offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street

easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

- 8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
- 9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of March, 2022.

Leo Kelly, Jr. **(signed)**
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom **(signed)**
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
815 Water Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **815 Water Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0069 04020**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$7,594.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady** and

WHEREAS, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with the offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

- 1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
- 2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
- 3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
- 4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
- 5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
 FOR SALE OF REAL PROPERTY
 1323 Lehman, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **1323 Lehman Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0100 01005**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$3,000.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Yolanda Garcia Vasquez**; and

WHEREAS, **Yolanda Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with the offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of March, 2022.

Leo Kelly, Jr. **(signed)**
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom **(signed)**
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
 FOR SALE OF REAL PROPERTY
 Warrenton Road, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Warrenton Road, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0212 02012**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$920.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Frederick Taylor**; and

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

- This the 7th day of March, 2022.**

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

Figure 1

**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
311 Tungsten Mine Road, Henderson, NC 27537**

WHEREAS, Vance County owns certain real property with an address of **311 Tungsten Mine Road, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0325 03039**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$6,100.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Angel Bernardino Flores Rios**; and

WHEREAS, **Angel Bernardino Flores Rios** has paid the required deposit in the amount of **\$750.00** with the offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of March, 2022.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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Consent Agenda

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following consent agenda items as presented: Budget Transfers #1, #4 and #5, January 2022 Tax Refunds and Releases, departmental monthly reports, and the minutes of the February 7, 2022 regular meeting.

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Budget Transfer #1
FY 2021-2022
NSP Fund

Transfer From:	Account Number	Amount
General Fund	10-000-999000	65,489.45
Total		\$ 65,489.45
Transfer To:	Account Number	Amount
Neighborhood Stabilization Fund	52-000-999000	65,489.45
Total		\$ 65,489.45

Purpose: To close out Neighborhood Stabilization Fund.

Authorization: Vance County Board of Commissioners
March 7, 2022

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Budget Transfer #4
FY 2021-2022
Fire Department

Transfer From:	Account Number	Amount
Salaries	10-531-500001	6,872.25
Total		\$ 6,872.25

Transfer To:	Account Number	Amount
Capital Outlay	10-531-500074	6,872.25
Total		\$ 6,872.25

Purpose: Utilize lapse salaries to purchase generator at Kerr Lake station.

Authorization: Vance County Board of Commissioners
March 7, 2022

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Budget Transfer #5
FY 2020-2021
DSS

Transfer From:	Account Number	Amount
Salaries	10-610-500001	2,200
Total		\$ 2,200

Transfer To:	Account Number	Amount
Kerr Tar COG Grant	New Account	2,200
Total		\$ 2,200

Purpose: 10% match to receive more ARPA funding for Senior Center from Kerr-Tar COG.

Authorization: Vance County Board of Commissioners
March 7, 2022

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TAX OFFICE REFUND AND RELEASE REPORT FOR JANUARY 2022

TAXPAYER NAME	TAX YR	REAL	PERSONAL	SOLID WASTE FEE	REASON
LOPEZ GABRIEL ROBLES	2020	12.53	0	0	FC LOSS
LEWIS ELIZABETH RAE	2021	0	277.01	0	CORRECT VALUE
RESENDIZ DIAZ CARLOS	2021	0	79.54	0	TP LIVED IN VA
RESENDIZ DIAZ TAMMY MARIE	2021	0	199.24	0	NO GAP, TP MOVED
AIKEN KIRBY G	2021	0	64.25	120	PERS PROP BILLED
CHAPPELL MAE BELLE HEIRS	2021	119.99	0	0	FC LOSS
GOMEZ LAURA	2021	0	33.68	120	PERS PROP BILLED
GOMEZ LAURA	2021	0	123.62	0	PERS PROP BILLED
LOPEZ GABRIEL ROBLES	2021	60.89	0	0	FC LOSS
MACDONALD JOHN LYNAM	2021	0	77.64	0	PERS PROP BILLED
O'DELL TONYA	2021	0	52.53	0	MH DOUBLE BILLED
ROBERSON TERESA L	2021	0	40.88	120	PERS PROP BILLED
ROSE OIL COMPANY	2021	0	1088.57	0	PERS PROP BILLED
ROSE OIL COMPANY	2021	0	0.98	0	PERS PROP BILLED
WALLER JAMES C	2021	0	34.68	0	PERS PROP BILLED
WALLER JAMES C	2021	0	3.23	0	PERS PROP BILLED
WEST WADE N SR	2021	511.30	0	0	REAL PROP - BILL

COFFEY CHAD	2022	0	0	0	ADD SOLID WASTE
TOTAL		704.71	2075.85		
GRAND TOTAL	2780.56				

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MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-
Offs, Cooperative Extension, EMS, Human Resources, Information Technology, Parks and
Recreation, Planning and Development, Tax Collections and Veterans Service.

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Miscellaneous

Appointments. The following appointments were presented to the board for consideration:

Kerr-Tar Workforce Development Board
Appoint Michele Burgess to fill vacant position.

Tourism Development Authority
Appoint Amanda Welsh and Donald Matthews to fill vacant positions.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner
Dan Brummitt, vote unanimous, to approve the appointments as presented.

As there was no further business, at 7:15 p.m., motion was made by Commissioner Thomas
S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, that the meeting be
adjourned.

Approved and signed April 4, 2022.

Leo Kelly, Jr. **(signed)**
Leo Kelly, Jr., Chairman